Prakash Kumar Singh vs State (Nct Of Delhi) on 19 September, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3381/2024 & CRL. MA 28264/2024
   PRAKASH KUMAR SINGH ....
   Through: Mr. K. Singhal, Ms. Van
   Mr. Ujwal Ghai, Mr. P
   Udit Bakshi and Ms. D
   Advocates.
   versus

   STATE (NCT OF DELHI)
   Through:

   CORAM:
   HON'BLE MR. JUSTICE MANOJ KUMAR OHRI
   ORDER

% 19.09.2024

1. The present application has been filed by the petitioner/applicant seeking anticipatory bail in FIR No. 136/2024 registered under Sections 420/120B IPC at P.S. Special Cell, New Delhi.

2. Learned counsel for the applicant submits that as per the case of the prosecution, the present applicant in conspiracy with one Akalesh Das has defrauded the complainant to the tune of total sum of around Rs.3.32 crores out of which Rs.1.21 crores have travelled to the account of M/s AD Enterprises. However, he submits that there is nothing on record to link the present applicant with the aforesaid account it has been alleged that the cheated amount has gone into the account of one M/s AD Enterprises. He submits that M/s AD Enterprises is a proprietorship firm under This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 24/09/2024 at 20:56:09 proprietorship of one Akalesh Das who is known to the present applicant. He submits that during the pendency of the anticipatory bail proceedings before the learned Sessions Court, a Status Report came to be filed wherein it has been so alleged.

3. The bail application is vehemently opposed by the learned APP for the State who is duly assisted by learned counsel for the complainant. It is stated that besides the present complaint, there are three other complaints against the applicant. It is further stated that the applicant's bank account has been frozen on complaints of fraud received from Sikkim, Uttar Pradesh and Gujarat police.

4. A copy of the Status Report has been handed over today in the Court which is taken on record. As per the Status Report, the complainant has alleged that he was made a member of the Whatsapp group namely 'Stock Market Research Institute', which he joined through a group invite link sent to him by one Anil Ja Sharma. The said group was formed to share investment tips for trading in stock market. The complainant was induced to invest in stock market and consequently, he parted with a sum of Rs.2.86 crores from 10.01.2024 to 05.02.2024 by way of deposits made in different bank accounts and thereafter, when he requested for the withdrawal, he was further charged TDS of Rs.46 lacs. Subsequently, he was removed from the aforesaid Whatsapp group. It is stated that during investigation, it was found that the location of the admin of the Whatsapp group was found to be outside India. The money to the tune of Rs.3,32,82,514 was transferred from the complainant's account, out of which a sum of Rs.1,21,00,000/- was transferred in an account number 259102414983 belonging to M/s AD Enterprises at Chhoti Pahari, Patna, Bihar. It is stated that the proprietor is This is a digitally signed order.

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5. Considering the totality of the facts and circumstances of the present This is a digitally signed order.

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MANOJ KUMAR OHRI, J SEPTEMBER 19, 2024/rd This is a digitally signed order.

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